

Babulal Sirsham vs The State Of Madhya Pradesh on 21 July, 2023

Author: Anuradha Shukla

Bench: Anuradha Shukla

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SMT. JUSTICE ANURADHA SHUKLA
ON THE 21st OF JULY, 2023
MISC. CRIMINAL CASE No. 8455 of 2023

BETWEEN: -
BABULAL SIRSHAM S/O BIHARIRAM SIRSHAM, AGED
ABOUT 36 YEARS, OCCUPATION: LABOUR GRAM
JAITAPUR P.S. BETUL BAZAR (MADHYA PRADESH)

(BY SHRI HIMANSHU TIWARI - ADVOCATE)

AND
THE STATE OF MADHYA PRADESH THROUGH POLICE
STATION BETUL BAZAR BETUL (MADHYA PRADESH)

(BY SHRI RAM GIRISH VERMA - PANEL LAWYER FOR THE RESPONDENT-
STATE) & (SHRI AMIT KUMAR DWIVEDI - ADVOCATE FOR
COMPLAINANT)

Heard on :13.07.2023

Pronounced on : 21.07.2023

This miscellaneous criminal case having been heard and r
ord ers, coming on for pronouncement this day, t h e cou rt pa
following:

ORDER

T h e applicant has filed this petition under Section 482 Cr.P.C. for accepting the compromise and pass appropriate order in context of CRA No.6563/2022 wherein the impugned judgment passed on 30.06.2022 in ST No.400268/2016 by the learned III ASJ Betul is challenged. The applicant Babulal stands convicted by that impugned judgment for the offences under Section 394 and 397 of IPC and is sentenced to 10 years and 7 years rigorous imprisonment resepectively along with fine.

2. The facts as stated in this petition and relevant for its decision are that a report was lodged by the complainant Banshilal alleging that on 30.8.2016 while coming from village Nahiya to village

Junwani he was robbed of Rs.30,000/- and was assaulted resulting into several injuries to him. With the assistance of Ramesh Pawar, he was taken to hospital and a Dehati Nalishi was lodged on his behest in the crime registered under Section 394 IPC against unnamed persons. The investigation was undertaken and chargesheet was filed against the applicant and also against one more person. After the trial, the applicant was convicted and sentenced as aforesaid.

3. It is mentioned in the petition that a compromise has been reached between the complainant Banshilal who is also an injured person and the applicant and they have settled the dispute. The applicant is a young man of 30 years and keeping him in jail may cause irreparable damage to his future. Further, the judgment and findings arrived at by the Court below is contrary to law, facts and circumstances as there are many contradictions in the oral and written statements. Further, the test identification parade was conducted against the established principles of law. The seizure memo witnesses have also not supported the version of prosecution's case. Therefore, the legality of judgment has also been challenged in this petition.

4. Arguments of learned counsel of all the parties have been heard. Complainant has also been represented in this case through his counsel.

5. Admittedly, a CRA No.6563/2022 is pending for disposal wherein the applicant has challenged the impugned judgment of III Additional Sessions Judge, Betul passed in ST No.400268/2016 on its merits. The grounds raised therein have also been taken in this petition under Section 482 of Cr.P.C. The scope and extent of Section 482 of Cr.P.C. do not permit to examine the legality of judgment passed by a competent Court. For this, the appellate jurisdiction is to be invoked and that has already been resorted to by filing CRA No.6563/2022. Thus, the grounds mentioned in this petition regarding perversity or illegality of the judgment passed by III ASJ cannot be examined here.

6. The other ground in this petition is that a compromise has been reached between the parties but that compromise is not filed in the present petition. The record of CRA No.6563/2022 shows that an application seeking permission to compromise was filed in that case as I.A. No.14816/2023. In the light of that application dated 22.06.2023, an order was passed in CRA No.6563/2022 directing the parties to remain personally present for verification of compromise on that date itself.

7. The verification report of even date is enclosed in the criminal appeal wherein it is mentioned that the complainant has entered into the compromise voluntarily and on his own free will. The report further says that there was no threat or inducement upon the complainant to settle the dispute and he has amicably resolved it. In the light of this verification report, it is pleaded that the matter is fully and finally settled between the parties.

8. The prayer made in this petition is to allow the permission to compromise. The offences in which the appellants stand convicted are Sections 394 and 397 of IPC and they both are non-compoundable in nature. Therefore, permission to compromise cannot be legally granted. It is in this context, the petition under Section 482 Cr.P.C has been filed and during arguments it was pleaded that the conviction of the applicant may be set aside. For this, the learned counsel for the

applicant has placed reliance on the decision of Hon'ble Supreme Court in Unnikrishnan Vs. State of Kerala CRLMP No.18630/2016. In that case, the petitioner was convicted under Section 394 of IPC and application for permission to compound the offence was allowed by the Apex Court.

9. The decision of Hon'ble Supreme Court delivered in Shiji @ Pappu & Ors vs Radhika in CRA No.2094/2011 needs reference here which says that in offences that are not non compoundable, the Court cannot permit such compromise in the teeth of Section 320(3) of Cr.P.C. but this do not limit the inherent power of High Court to make such orders as may be necessary to serve the ends of justice. It has also been cautioned that this power should be exercised with utmost caution and care, the width and measure of power itself demand that its exercise is to be used sparingly and only in cases where the High Court is, for reasons to be recorded or of the clear view that continuance of prosecution would be nothing but an abuse of power of law.

10. The case of Shiji (Supra) was related to an appeal where the conviction of appellants under Sections 354 & 394 was challenged. In the light of the facts of the case, the Hon'ble Supreme Court came to the finding that there was a dispute between the parties relating to the access to the two plots which were adjacent to each other and it is not the case of broad day robbery. The case was of such a nature which had its origin in civil dispute between the parties and it was apparent that the dispute has been resolved by them. The finding that there were some misunderstanding and misconception as claimed by the complaint in making the allegation, the Apex Court allowed the petition observing that in the absence of independent testimony, the continuance of proceeding was nothing but an empty formality. The appeal was therefore allowed and the judgment of conviction was set aside.

11. The facts of the case of Shiji (Supra) are distinguishable from the present case wherein a report of day light robbery was lodged in which the complainant was robbed of Rs.30,000/- and was caused as many as 11 injuries. They were on the head, face, shoulders and other parts of his body. The complainant and applicant were not in any kind of relationship or acquaintance prior to the incident. It was a case of pure and simple robbery. Therefore, the nature of this crime cannot be considered to be personal or affecting the victim alone. It is a matter related to a crime against the society at large.

12. Considering the facts of the case, this Court does not consider to exercise the power of Section 482 of Cr.P.C. to allow the permission to compromise and to quash the prosecution of applicant under the impugned judgment of learned III ASJ in ST No.400268/2016.

13. The present petition is accordingly, dismissed.

14. Copy of this order be placed in the record of CRA No.6563/2022.

(ANURADHA SHUKLA) JUDGE DevS